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Newsom signs ethnic studies requirement, years in the making

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Just two days before the deadline to act on legislation for the year, Gov. Gavin Newsom signed Assembly Bill 101 into law. The measure will make ethnic studies a graduation requirement for California's public and charter high school students.

Friday's signing marks the end of a contentious chapter in California politics, even as questions still remain surrounding the effects of the legislation.

The law, which will go into effect on Jan. 1, requires all public high schools and charter schools in the state to offer ethnic studies by the 2025-2026 school year. The course will become a graduation requirement in 2029-2030.

Years of debate following the release of a model curriculum draft opened fissures even among progressives over how the discipline — the interdisciplinary study of race and ethnicity traditionally focused on Black, Latino, Asian American and Native American groups — should be taught to high school students.

The California Legislative Jewish Caucus, a group of mostly liberal lawmakers, derided the model curriculum following its release in July 2019 for what it saw as unbalanced and superfluous criticism of Israel, and its omission of antisemitism.

But the curriculum was thoroughly revised since then. After tens of thousands of critical public comments, officials at the California Department of Education removed references to the Boycott, Divestment and Sanctions movement, added information on antisemitism and included two lessons on Jewish Americans. Those revisions satisfied a number of Jewish groups, including the Jewish Caucus, which unanimously supports AB 101.

Proponents say ethnic studies instruction has proven benefits for minority students, and AB 101 is an effective tool to implement it widely. Others, however, including the Santa Cruz-based antisemitism watchdog Amcha Initiative, remain strongly opposed to AB 101, arguing it leaves too much room for Israel-bashing in ethnic studies courses because it does not require the state's model curriculum, only recommends it.

The flexibility given to school districts opens the door for anti-Israel and other objectionable content to be taught, critics say. Amcha denounced AB 101's passage in a statement Friday.

"While certainly not all in the ethnic studies field fall into this category, there is a vocal and active faction of extremists who have long been seeking to inject their antisemitic and anti-Zionist agenda into our nation's classrooms," director Tammi Rossman-Benjamin said. "Today that faction succeeded."

Newsom celebrated the bill's passage in a signing statement Friday, while commending "guardrails" inserted into the legislation during the amendment process. Newsom vetoed a similar bill last year amid concern from Jewish groups.

"America is shaped by our shared history, much of it painful and etched with woeful injustice," the statement read. "Students deserve to see themselves in their studies, and they must understand our nation's full history if we expect them to one day build a more just society."

Newsom added, "I appreciate that the legislation provides a number of guardrails to ensure that courses will be free from bias or bigotry and appropriate for all students.

The statement continued, "The bill also expresses the Legislature's intent that courses should not include portions of the initial draft curriculum that had been rejected by the Instructional Quality Commission due to concerns related to bias, bigotry, and discrimination."

Three Jewish community organizations also released a statement approving of the measure's passage Friday afternoon.

"Today Governor Newsom signed Assembly Bill 101 into law, which makes ethnic studies a graduation requirement in California, ensuring that historically marginalized communities will see their own stories reflected in California high school education," read the joint statement from the S.F.-based Jewish Community Relations Council, the JCRC of Silicon Valley, and S.F.-based Jewish Family and Children's Services, including its Holocaust Center.

"We are also deeply appreciative of the hard work of Assemblymember Jesse Gabriel, Senator Scott Wiener, and the California Jewish Legislative Caucus, putting guardrails in place that will help ensure fair and inclusive courses in our classrooms and prevent marginalization of our and other communities," the statement read.

The signing comes two days after Newsom held a press conference and photo-op announcing a new initiative supported by a number of Jewish groups and Holocaust educators, to form a governor's council to improve Holocaust and genocide education for young people across the state.

Even as the ethnic studies mandate generated considerable controversy, many of the state's most populous school districts already teach ethnic studies, often in ninth grade, and some school districts already require it.

The Los Angeles school board voted in August 2020 to expand its ethnic studies classes and to establish the course as a high school requirement. San Francisco and Oakland have also passed resolutions requiring the course.

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